



SPONSOR: Rep. Gorman & Rep. Ortega & Sen. Lockman &
Sen. Pinkney
Reps. Chukwuocha, Snyder-Hall, Lynn, Morrison,
Michael Smith, Ross Levin, Phillips, Romer, Bolden,
Lambert; Sens. Sturgeon, Cruce, Huxtable, Seigfried

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 182

AN ACT TO AMEND TITLE 11 OF THE DELAWARE CODE RELATING TO LAW ENFORCEMENT AGENCY AGREEMENTS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend Part V, Title 11 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 Chapter 84B. PROHIBITED POLICE PRACTICES

4 § 8401B. Definitions.

5 As used in this chapter “law-enforcement agency” means the Delaware State Police, the Wilmington City Police
6 Department, the New Castle County Police, the University of Delaware Police Division, the Delaware State University
7 Police Department, the police force established by the Delaware River and Bay Authority, the police department, bureau of
8 police, or police force of any incorporated municipality, city, or town within this State, the Department of Natural
9 Resources and Environmental Control, the Delaware Capitol Police, Probation and Parole Office of the Department of
10 Correction, Probation and Parole of the Department of Services for Children, Youth and their Families, State Fire Marshal,
11 the Department of Justice, the State Police Drug Diversion Unit, or the State Division of Alcohol and Tobacco
12 Enforcement.

13 § 8402B. Law-enforcement agency agreements; prohibitions.

14 (a) A law-enforcement agency may not enter into or renew an agreement, contract, memorandum of
15 understanding, or other arrangement that:

16 (1) Authorizes the law-enforcement agency to exercise federal immigration enforcement powers or to detain
17 or house individuals for federal civil immigration violations.

18 (2) Causes the law enforcement agency to detain or house individuals who are in the custody of a federal
19 immigration authority for violations of federal immigration law.

20 (3) Authorizes the law-enforcement agency to disclose an individual's identifiable information as it relates to
21 the individual's nationality, citizenship status, or immigration status unless directed by a valid judicial warrant or
22 required by federal law.

23 (b) Each unit of local government, law-enforcement agency, and State agency with an existing immigration
24 enforcement agreement must exercise the termination provision contained in the immigration enforcement agreement
25 before July 1, 2025.

SYNOPSIS

 This Act prohibits law-enforcement agencies from entering into agreements with federal immigration enforcement authorities to enforce immigration violations or share immigration enforcement related data.

 This Act is not intended to prevent a law-enforcement agency from working with the federal government on other public safety efforts.